Harris County District Court

Cause No. 2024-CV-0049

Nicholas Cook, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-18-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant, by and through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

I. General Denial

Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every, all and singular, the material allegations contained in Plaintiff's Original Petition, and demands strict proof thereof by a preponderance of the evidence as required by the Constitution and laws of the State of Texas.

II. Affirmative Defenses

First, Defendant asserts the defense of proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. To the extent the evidence shows Plaintiff failed to keep a proper lookout, failed to yield the right-of-way, or otherwise contribuetd to the occurrence, Plaintiff's recovery must be reduced or barred in accordance with Section 33.001 and Section 33.012.

Second, Defendant asserts that the occurrence was caused in whole or in part by the acts or omissions of a third party over whom Defendant had no control, and Defendant requests that the trier of fact designate such persons as responsible third parties under Section 33.004.

Third, Defendant asserts the defense of sudden emergency. Defendant was confronted with a sudden and unexpected circumstance not of its own making while proceeding through the intersection, and it acted as a reasonably prudent person would under the same or similar circumstances.

Defendant reserves the right to amend this Answer as discovery proceeds.